

Amendment No. 1 to SB1052

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1052*

House Bill No. 1355

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 36-1-102(45)(B), is amended by designating the current language as subdivision (45)(B)(i) and adding the following as a new subdivision (45)(B)(ii):

(ii) Payment of financial support to or for the benefit of the child or the child's mother during the pregnancy or when the mother had physical custody of the child does not include payment of token financial support. As used in this subdivision (45)(B)(ii), "token financial support" means one (1) or more payments that constitute no more than perfunctory support or payments of such an infrequent nature or of such short duration as to merely establish minimal or insubstantial support for the child or the child's mother during the pregnancy;

SECTION 2. Tennessee Code Annotated, Section 36-1-120(b), is amended by deleting "affidavit" wherever it appears and substituting "affidavit, or declaration as permitted under Rule 72 of the Tennessee Rules of Civil Procedure,".

SECTION 3. Tennessee Code Annotated, Section 63-1-165, is amended by deleting subdivision (c)(1) and substituting:

(1) A healthcare provider shall not provide a vaccination to a minor unless the healthcare provider first receives informed consent from a parent, as defined in § 63-1-176; legal guardian; or prospective adoptive parent, as defined in § 36-1-102, of the minor. The healthcare provider shall document receipt of, and include in the minor's medical record proof of, such prior informed consent.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.